

TEXAS EVICTION · REFERENCE

Writs of Possession

Why winning the unit back is only half the outcome — and how to recover the money the judgment leaves on the table

A writ of possession restores your unit. It does not restore your money. The unpaid rent, the damage beyond the deposit, and the fees the lease entitles you to remain owed after the tenant is removed — a separate debt that most operators simply write off. This reference walks the Texas eviction sequence at a high level, explains exactly what the writ does and doesn't do for your ledger, and shows how the money balance is actually recovered.

Executive summary

- A writ of possession returns the property; the monetary balance is a **separate recovery** that survives the eviction.
- The Texas eviction path runs from notice to vacate → forcible-detainer suit in Justice Court → judgment → appeal window → writ → constable removal. Timelines vary by county — confirm locally.
- Money owed under a written lease is generally subject to a **four-year statute of limitations** in Texas — a finite window to pursue it.
- The balance is recoverable through skip tracing, compliant contact, credit reporting (Equifax + Experian + RentBureau) and, where warranted, judgment enforcement.

1. The Texas eviction sequence, at a glance

Eviction in Texas is a defined legal process. The steps below are a general overview — exact timelines and requirements vary by county and court, and you should confirm them with local counsel:

STEP	WHAT HAPPENS
Notice to vacate	Written notice delivered to the tenant giving them the required period to leave before suit can be filed.
Forcible-detainer suit	The eviction case is filed in the Justice of the Peace court for the precinct.
Hearing & judgment	The court hears the case and, if the landlord prevails, issues a judgment for possession.
Appeal window	The tenant has a short period to appeal before the judgment can be enforced.
Writ of possession	If no appeal (or on further order), the court issues the writ authorizing removal.
Constable execution	A constable posts notice and, after the required period, oversees the physical removal and return of the unit.

2. What the writ does — and doesn't — do

The writ of possession accomplishes one thing: it gets your property back. It does **not** collect the money the tenant owes. A judgment in the eviction may establish or include amounts owed, but a judgment is a piece of paper until it is enforced — and the practical reality is that the former tenant is now gone, often without leaving an address. The money side of the loss is a distinct problem that begins where the eviction ends.

Two separate outcomes

- **Possession** — achieved by the writ; the unit is yours again and can be turned.
- **The money** — unpaid rent, damages and fees; still owed, still collectible, and the reason to place the account rather than write it off.

3. What's still collectible after the writ

Removal does not extinguish the debt. On a documented ledger, the following typically remain recoverable after possession is restored:

- Unpaid rent through the lease-end or move-out date.
- Property damage in excess of the security deposit.
- Broken-lease, holdover and other contractual fees.
- Utility chargebacks and, where awarded or provided for, court costs and legal fees.

4. The clock: statute of limitations

The right to sue on the money owed does not last forever. In Texas, claims on a **written contract — which a signed lease is — are generally subject to a four-year statute of limitations**, typically running from the default or last payment. A partial payment or written acknowledgment can, in some circumstances, restart or extend that window. The practical lesson is the same as with every receivable: the sooner the balance is placed and worked, the more of it can be recovered while the legal window and the tenant's trail are both still open. Confirm the

5. How the money is recovered after eviction

Once possession is restored, recovering the balance is a collections problem, not a court problem — and it follows the post-eviction playbook:

- **Skip tracing** to locate the removed tenant, who rarely leaves a forwarding address (70–80% location success).
- **Compliant contact and negotiation** under FDCPA / Reg F — validation notice, call-frequency limits, and a 30-day dispute window.
- **Credit reporting** to Equifax and Experian, plus Experian RentBureau, so the balance follows the tenant to their next lease application.
- **Judgment enforcement** where a monetary judgment exists and the balance justifies it — pursued in coordination with the owner.

Key takeaways

- The writ returns the unit; the money owed is a separate, collectible debt.
- Texas eviction runs notice → suit → judgment → appeal → writ → removal; timelines vary by county.
- Money under a written lease is generally subject to a 4-year statute of limitations in Texas — place before it runs.
- Post-writ, recovery is skip tracing + compliant contact + credit reporting + judgment enforcement.
- On contingency there's no cost to placing — writing the balance off is a guaranteed 0% recovery.

Getting started in three steps

1. After the writ, finalize the itemized ledger and any judgment documentation.
2. Place the balance with your lease and move-out records through the portal.
3. We skip-trace, contact compliantly, report where qualifying, and enforce where warranted.

Frequently asked questions

The writ is executed — is the debt gone?

No. Possession and the money are two separate outcomes. Removing the tenant does not extinguish the unpaid rent, damages and fees they owe.

How long do we have to pursue the money?

In Texas, claims on a written lease are generally subject to a four-year statute of limitations — place the balance before that window closes.

Do we need a money judgment before placing?

No. We skip-trace, contact compliantly and report where qualifying regardless; where a monetary judgment exists and the balance justifies it, we pursue enforcement in coordination with you.

Why not just write it off after the eviction?

Because a write-off is a guaranteed 0% recovery. On contingency there's no cost to placing, and reporting plus

Quick reference — after the writ

- **Writ** = possession only; the money is a separate recovery.
- **Still owed:** rent, damage above deposit, lease-break/holdover fees, utilities, costs.
- **Texas SOL:** ~4 years on a written lease — confirm with counsel.
- **Recovery path:** skip trace → compliant contact → credit reporting → judgment enforcement.
- **Cost:** \$0 upfront — pure contingency.

About Southwest Recovery Services

Southwest Recovery Services is a property-management and multifamily recovery specialist working post-eviction and unpaid-rent balances on pure contingency since 2004 — with a strong Texas footprint and the FCRA-approved credit-reporting standing most landlords can't furnish themselves.

AT A GLANCE

Recovering since	2004 — two decades of receivables recovery.
Track record	\$975M+ in receivables placed; \$76M+ recovered for clients; 800,000+ accounts worked.
Texas footprint	12 offices across 7 states — six in Texas (Addison HQ, Austin, Dallas, Houston, Midland, San Antonio); recovery nationwide.
Credit reporting	Equifax and Experian, plus Experian RentBureau — the rental-specific value-add, furnished at no additional charge.
Model & compliance	Pure contingency (\$0 upfront); FDCPA / Reg F compliant on residential accounts; ACA International member.

Recover the money the writ leaves behind

Send us your post-eviction balances — with the ledger and any judgment — and we'll pursue the money the eviction didn't, on contingency.

Call **(866) 551-4684** · sdietz@swrecovery.com · swrecovery.com

Provided for general informational purposes; not legal advice. Recovery figures are illustrative and vary by portfolio; statutes and court timelines vary by jurisdiction — confirm with counsel. Southwest Recovery Services does not collect consumer debt in California, Oregon or Washington.